HEADNOTE

*"1. The failure to use the workflow provided by the CMS does not prevent compliance with a time limit arising from the Rules of Procedure, Rule 4.1 sentences 1 and 2 RoP. At least in the initial phase of the UPC , the present action was filed on the first day of the UPC's commencement of operations, 1 June 2023 , a more generous standard is appropriate.*
*2. In revocation proceedings before the UPC, a patent may only be revoked to the extent that the grounds for revocation extend, pursuant to Article 65(3) UPCA, so that a patent may also (partly) remain valid in respect of individual independent claims within the complete set of claims filed as the main or auxiliary request, respectively. This applies to independent claims where these do not build upon one another in such a way that the revocation of one would necessarily require the revocation of the other, because they would constitute closed claim sets."*

COURT
Local Division in Hamburg

PROCEEDINGS
Infringement action and Counterclaim for revocation

PATENT
**EP1612910**

On-board power supply monitor and power control system

KEYWORDS

- Calculation of time limits
- Use of CMS workflows
- R. 4.1 sentences 1 and 2 RoP
- R. 30.1 RoP in conjunction with R. 29(a) RoP
- Partial revocation
- Art. 65(3) UPCA
- Art. 138(3) EPC

**Rule 4** Lodging of documents

SUMMARY

The Local Division in Hamburg ruled on an infringement action and counterclaim for revocation. The patent at issue relates to an on-board power supply monitor and power control system. According to the headnotes of the decision, failure to use the case management system does not prevent compliance with procedural time limits. This principle applies particularly during the UPC's initial phase, when the court commenced operations on 1 June 2023. A more generous standard was deemed appropriate for cases filed on that opening day. Furthermore, in revocation proceedings before the UPC, a patent may be revoked only to the extent that grounds for revocation extend under Article 65(3) UPCA. This means that a patent can remain partly valid for individual independent claims within a complete claim set. In particular, independent claims need not all be revoked together if they do not form closed claim sets. Revocation of one claim does not necessarily require revocation of another in such circumstances.